

**Tentative Rulings and Resolution Review Hearings
June 2, 2025
Department 64**

THIS CALENDAR WILL BE CALLED IN DEPARTMENT 43

Those appearing by CourtCall should use the dial in for Department 64.

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

CAPITAL ONE, N.A. VS. TODD

Case Number: 23CVG-00254

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Per CCP § 664.6: Plaintiff Capital One Bank, N.A. seeks to vacate the dismissal entered on June 12, 2023, and enforce the Stipulation Agreement filed on June 5, 2023. Although the motion was timely noticed, Defendant Gary Todd did not file an opposition.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing, or orally before the Court. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The parties stipulated to settlement in May of 2023, which was filed with the Court on June 5, 2023. The terms of the agreement provide that Defendant agreed to pay Plaintiff recurring monthly payments of \$166.00, and a final payment of \$145.42.

In the event of a default, Defendant agreed to pay \$5,955.42 plus court costs of \$314.00, minus credits of \$2,781.00, for a total of \$3,488.42. The Declaration of Attorney Laura D'Anna establishes the following facts. Dismissal was entered on June 12, 2023. The last payment was received on December 5, 2024 (a part payment). Defendant has paid \$2,781.00. The balance now due is \$3,174.42 plus costs in the sum of \$314.00 for a total requested judgment of \$3,488.42. The amount of costs was a term of the Stipulated Agreement. Plaintiff has presented sufficient evidence that Defendant is in default of the Stipulated Agreement.

The motion is **GRANTED**. The dismissal is set aside. Judgment will be entered in the amount of

\$3,488.42. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

IN RE: DILL

Case Number: 25CV-0207336

Tentative Ruling on Petition for Change of Name: Petitioner Dominick Nicholas Dill seeks to change his name to Dominick Nicholas France. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion for Issue and/or Evidentiary Sanctions: Plaintiffs move for an order imposing issue and/or evidentiary sanctions against Defendants for their willful failure to comply with a prior Court order. Specifically, Plaintiffs request the following:

- A finding that Defendants willfully failed to comply with court orders with respect to the production of documents;
- That as a result of Defendants' knowing, intentional, willful, oppressive, and malicious misconduct, it is conclusively established they are legally responsible for the Covid outbreak at the Windsor facility in September 2020 that caused the death of Plaintiffs; and
- It is conclusively established that Defendants knowingly, intentionally, willfully, oppressively, and maliciously neglected Plaintiffs by clear and convincing evidence after they contracted Covid.

Plaintiffs also request monetary sanctions in the amount of \$11,050. The present motion was previously on calendar on December 16, 2024 and February 10, 2025 but continued to today's date to permit Defendants to complete the production of documents.

Merits of Motion: On May 14, 2024, Plaintiffs served Defendant Windsor Redding with a Third Request for Production of Documents. On June 17, 2024, Windsor Redding provided written responses to the discovery. After meet and confer efforts, Plaintiffs filed a motion to compel on August 7, 2024. The Court heard and granted the motion on September 16, 2024. The Court's order dated September 25, 2024 required Defendants to produce the requested documents within 45 days and imposed sanctions in the amount of \$2,860. At the expiration of the 45 deadline, Defendants provided amended responses and a limited production of the documents. Since that time Defendants have never fully complied with the Court's prior order. Defendants argue that the breadth of the required discovery and the time to fully review and produce the discovery has prevented them from a full production. Defendants originally estimated "substantial completion" of production by the end of January 2025; however, their supplemental status filed on February 3, 2025, now provides that the production will be completed by February 15, 2025. Defendants' supplemental status filed on May 5, 2025, shows progress on the production but also provides that production has not been completed. It should be noted that Defendants have never sought a protective order nor requested additional time from the Court to produce the records.

The Civil Discovery Act defines a misuse of discovery as, among other things, the disobedience of a court order to provide discovery. CCP § 2023.010(g). A court is permitted to impose issue or evidentiary sanctions for a misuse of the discovery process. CCP § 2023.020(b) and (c). The